

## Prem Veer Singh v. D.V.V.N.L. — fresh tube-well connection on Annexure 4.2 affidavit

Allahabad High Court · Division Bench · 5 February 2020 · WRIT - C No. - 2305 of 2020 · **Writ disposed of; petitioners directed to apply afresh with the prescribed deposit and an Annexure 4.2 affidavit; any application made within four weeks to be considered strictly in accordance with law and decided within four weeks thereafter.**

### HEADNOTE

Where a tube-well connection standing in the name of a deceased joint tenant was disconnected after unauthorised use by a co-tenant, the Allahabad High Court disposed of a restoration writ by directing the consumers to apply for a fresh connection with the statutory deposit and an Annexure 4.2 affidavit under the U.P. Electricity Supply Code, 2005. An application made within four weeks was to be considered strictly in accordance with law and a final order passed within four weeks. Restoration was not granted on the writ.

### FACTUAL SUMMARY

The petitioners' tube-well electricity supply was disconnected after they complained that Raghuvir Singh, brother of petitioner Nos. 2 to 4 and a joint tenant of agricultural holdings that had belonged to Ganga Singh, was drawing power unauthorisedly by tapping the tube-well. They sought restoration. The connection stood in Ganga Singh's name. Counsel for the respondent licensee (D.V.V.N.L.) submitted that the petitioners could apply for a fresh connection with the prescribed deposit and an Annexure 4.2 affidavit. The petitioners had no objection and undertook to apply.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::Annexure 4.2

fresh connection after disconnection — Annexure 4.2 affidavit

#### HOLDING

A writ seeking restoration of a tube-well connection disconnected for unauthorised use by a co-tenant may be disposed of by directing the consumer to apply for a fresh connection with the deposit and Annexure 4.2 affidavit required by the U.P. Electricity Supply Code, 2005; if that application is made within the time allowed, the licensee shall consider it strictly in accordance with law and pass a final order within the further time fixed. Restoration was not ordered on the writ. ¶ 1

### PRINCIPLE TAGS

**direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents** With the petitioners' consent, the Court declined to restore the disconnected tube-well supply on the writ and instead directed a fresh-connection application accompanied by the Annexure 4.2 affidavit, to be considered strictly in accordance with law. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — WHETHER THE DISCONNECTED TUBE-WELL SUPPLY WAS LIABLE TO BE RESTORED RATHER THAN A FRESH CONNECTION GRANTED

The petitioners agreed to apply afresh; restoration was not decided on merits. ¶ 1

#### NOT DECIDED — WHETHER A NO-OBJECTION FROM CO-HEIRS OF GANGA SINGH WAS A CONDITION OF GRANT

The Court recorded from the admitted pleadings that a no-objection would be necessary and that any connection would remain joint unless the holdings were partitioned, but the operative direction was only to consider a fresh application in accordance with law. ¶ 1

